



General Assembly

Substitute Bill No. 399

February Session, 2026



***AN ACT CONCERNING THE DISPOSITION OF CASES BEFORE THE
COMMISSION ON HUMAN RIGHTS AND OPPORTUNITIES.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (e) of section 46a-83 of the general statutes is
2 repealed and the following is substituted in lieu thereof (*Effective October*
3 *1, 2026*):

4 (e) If the complaint is not resolved after the mandatory mediation
5 conference, the complainant, the respondent or the commission may at
6 any time after such conference and before a draft investigative report is
7 issued request early legal intervention. If a request for early legal
8 intervention is made, a commission legal counsel shall determine not
9 later than ninety days after the date of the request whether the
10 complaint should be (1) heard pursuant to section 46a-84, (2) processed
11 pursuant to subsection (f) of this section, or (3) released from the
12 jurisdiction of the commission. In making such determination,
13 commission legal counsel may hold additional proceedings and may
14 utilize and direct commission staff. If a commission legal counsel
15 determines that the complaint should be processed pursuant to
16 subsection (f) of this section, the commission legal counsel may
17 recommend that the investigator make a finding of no reasonable cause.
18 The investigator shall make such a finding unless the investigator
19 believes the commission legal counsel made a mistake of fact. If the

20 investigator intends to make a finding of reasonable cause after the
21 commission legal counsel recommends otherwise, the investigator shall
22 consult with the commission legal counsel.

23 Sec. 2. Section 46a-94a of the general statutes is repealed and the
24 following is substituted in lieu thereof (*Effective October 1, 2026*):

25 (a) The commission, any respondent or any complainant, aggrieved
26 by a final order of a presiding officer, may appeal to the Superior Court
27 in accordance with section 4-183. Any complainant may appeal to the
28 Superior Court in accordance with section 4-183 if the complainant is
29 aggrieved by (1) the dismissal of his or her complaint by the commission
30 for failure to attend a mandatory mediation session as provided in
31 subsection (m) of section 46a-83, (2) a finding of no reasonable cause as
32 provided in subsection (g) of section 46a-83, or (3) rejection of
33 reconsideration as provided in subsection (h) of section 46a-83.

34 (b) Notwithstanding the provisions of subsection (a) of this section, a
35 complainant may not appeal the dismissal of his or her complaint if he
36 or she has been granted a release pursuant to section 46a-101.

37 (c) The commission on its own motion may, whenever justice so
38 requires, reopen any [matter] complaint previously closed. [provided
39 such matter has not been appealed to the Superior Court pursuant to
40 subsection (a) of this section.] Notice of such reopening shall be given to
41 all parties. A complainant or respondent may, for good cause shown, in
42 the interest of justice, apply in writing for the reopening of a previously
43 closed proceeding, provided such application is filed with the executive
44 director of the commission within two years of the [commission's]
45 commission's final decision and the complainant has not (1) [not] been
46 issued a release of jurisdiction pursuant to section 46a-83a, as amended
47 by this act, and filed a civil action; [or] (2) requested and received a
48 release of jurisdiction from the commission pursuant to section 46a-101;
49 (3) been issued a release of jurisdiction pursuant to subsection (c) of
50 section 46a-83 and filed a civil action; (4) been issued a final decision at
51 the commission's office of public hearings; or (5) appealed the final

52 agency decision to the Superior Court.

53 (d) The standards for reopening a [matter may include, but are not
54 limited to] complaint are as follows: (1) A material mistake of fact or law
55 has occurred; (2) the finding is arbitrary or capricious; (3) the finding is
56 clearly erroneous in view of the reliable, probative and substantial
57 evidence on the whole record; [and] or (4) new evidence has been
58 discovered which materially affects the merits of the case and which, for
59 good reasons, was not presented during the investigation.

60 Sec. 3. Subsection (c) of section 46a-55 of the general statutes is
61 repealed and the following is substituted in lieu thereof (*Effective October*
62 *1, 2026*):

63 (c) The executive director may, within available appropriations,
64 assign a commission legal counsel to bring a civil action concerning an
65 alleged discriminatory practice, in accordance with this subsection, in
66 lieu of an administrative hearing pursuant to section 46a-84, when the
67 executive director determines that a civil action is in the public interest
68 and if the parties to the administrative hearing mutually agree, in
69 writing, to the bringing of such civil action by commission legal counsel.
70 The commission legal counsel shall bring such a civil action in the
71 Superior Court not later than ninety days following the date the
72 commission legal counsel notifies the parties of the executive director's
73 determination. Such civil action may be served by certified mail and
74 shall not be subject to the provisions of section 46a-100 [.] or 46a-101. [or
75 46a-102.] The jurisdiction of the Superior Court in an action brought
76 under this subsection shall be limited to such claims, counterclaims,
77 defenses or the like that could be presented at an administrative hearing
78 before the commission, had the complaint remained with the
79 commission for disposition. A complainant may intervene as a matter
80 of right without permission of the court or the parties. The civil action
81 shall be tried to the court without a jury. If the commission legal counsel
82 determines that the interests of the state will not be adversely affected,
83 the complainant or attorney for the complainant shall present all or part
84 of the case in support of the complaint. The court may grant any relief

85 available under section 46a-104. Where the Superior Court finds that a
86 respondent has committed a discriminatory practice, the court shall
87 grant the commission its fees and costs and award the commission a
88 civil penalty, not exceeding ten thousand dollars, provided such
89 discriminatory practice has been established by clear and convincing
90 evidence, which shall be payable to the commission and used by the
91 commission to advance the public interest in eliminating discrimination.

92 Sec. 4. Subsection (b) of section 46a-82b of the general statutes is
93 repealed and the following is substituted in lieu thereof (*Effective October*
94 *1, 2026*):

95 (b) If the commission fails to issue a determination of reasonable
96 cause or no reasonable cause on any such complaint not later than
97 January 1, 1997, the executive director of the commission shall issue
98 forthwith a release of the complaint from the commission, allowing the
99 complainant to bring a civil action. Upon receipt of a release pursuant
100 to this section, the complainant may bring a civil action in accordance
101 with the provisions of sections 46a-100, 46a-101, 46a-103 and 46a-104. [,
102 notwithstanding the statute of limitations pursuant to section 46a-102.]

103 Sec. 5. Section 46a-83a of the general statutes is repealed and the
104 following is substituted in lieu thereof (*Effective October 1, 2026*):

105 If a complaint is dismissed for failure to accept full relief pursuant to
106 subsection (m) of section 46a-83, and the complainant does not request
107 reconsideration of such dismissal as provided in subsection (h) of
108 section 46a-83, the executive director shall issue a release of jurisdiction
109 and the complainant may, within ninety days of receipt of the release
110 from the commission, bring an action in accordance with sections 46a-
111 100, [and 46a-102 to 46a-104, inclusive] 46a-103 and 46a-104.

112 Sec. 6. Section 46a-102 of the general statutes is repealed. (*Effective*
113 *October 1, 2026*)

This act shall take effect as follows and shall amend the following sections:

Section 1	<i>October 1, 2026</i>	46a-83(e)
Sec. 2	<i>October 1, 2026</i>	46a-94a
Sec. 3	<i>October 1, 2026</i>	46a-55(c)
Sec. 4	<i>October 1, 2026</i>	46a-82b(b)
Sec. 5	<i>October 1, 2026</i>	46a-83a
Sec. 6	<i>October 1, 2026</i>	Repealer section

Statement of Legislative Commissioners:

In Section 2(d), "matter" was bracketed and replaced with "complaint" for internal consistency.

JUD *Joint Favorable Subst.*